

GRAETERLAW LLC  
P.O. Box 3229  
Beverly, MA 01915  
(617) 529-3271  
philip@graeterlaw.com

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By Email Only to citycouncil@haverhillma.gov

Timothy J. Jordan, President  
Haverhill City Council  
4 Summer Street  
Haverhill, MA 01830

Re: CCSP-26-3 – Special Permit Application, 421 East Broadway

Dear President Jordan and Members of the Council:

In advance of the August 25<sup>th</sup> continued hearing on this matter, I write again on behalf of Timothy Sturgeon and Judith Biewener of 419 East Broadway, direct abutters to the property at 421 East Broadway (“Property”), on which the applicant, Maryam Salehi-Ala-Yamin (“Applicant”) seeks to operate a bed-and-breakfast establishment.

Since the June 30<sup>th</sup> hearing on the application, the Applicant has conceded that she must occupy the Property as her primary residence to operate a bed and breakfast. By letter dated August 18, 2026, from the Applicant’s counsel, she withdrew her request for a waiver of that requirement as a condition of a special permit and requested that the Council consider the application with the conditions she has previously proposed. The most recent version of the proposed conditions is stated in Applicant’s counsel’s letter dated July 24, 2026.

The Applicant’s proposed conditions include activities that far exceed the scope of the bed-and-breakfast establishment use, which the Zoning Ordinance defines as “[a]n owner-occupied dwelling with not more than six rooms available for overnight rental, with or without breakfast” (Ordinance, § 11.1). While the definition is short, it allows exactly two specific uses of a property as a B&B: (1) overnight rental of up to six rooms, and (2) optional meal service for those overnight guests limited to breakfast. It also implicitly limits the scope of the B&B use to the only type of structure in which it is permitted to operate, namely, an owner-occupied dwelling, i.e. a “home residence” as defined in the Ordinance.

The proposed use of the Property to host “small gatherings” for up to 30 guests as part of the B&B business is an effort to use the Council’s authority to impose conditions on a special permit to expand the scope of “bed-and-breakfast establishment” beyond what the Ordinance allows. Special permits are not a vehicle by which uses prohibited in a zoning district may be

allowed. The purpose of a special permit is to impose an orderly control on certain uses that are specifically allowed in a zoning district but not allowed as of right.<sup>1</sup> Conditions to a special permit are designed to ensure that the proposed activity is conducted in harmony with the Zoning Ordinance. Specifically, “[s]pecial permits may be granted with such reasonable conditions, safeguards, or limitations on time or use, including performance guarantees, as the SPGA may deem necessary to serve the purposes of this chapter.” (Ordinance, § 10.4.4). There is no authority for the proposition that “reasonable conditions” can be read to include uses specifically prohibited in a zoning district.

In this case, bed-and-breakfast establishment is the use allowed by special permit in an RR district. That use is limited to the Ordinance’s definition of “bed-and-breakfast establishment,” as discussed above. As set forth in more detail in my July 27, 2026, letter, the Ordinance specifically prohibits the various business uses into which the Applicant’s proposed “small gatherings” for up to 30 guests might fit, including the uses in Sections D(8), I(3), G(1), G(5), F(1), I(4), I(19), and I(20) of the Table of Uses Appendix. Allowing these additional uses in the RR district as a condition to a special permit for a defined use is beyond the power of a special permit granting authority, particularly where the proposed business activities of hosting events and classes are not expressly permitted under the B&B use, are not residential in character, and are otherwise prohibited in the district, contrary to Section 3.1.1, which provides that “[a]ny use not listed shall be construed to be prohibited.”

To the extent the Applicant proposes to conduct classes, it is reasonable to assume that once she occupies it as her primary residence, she could hold the type of classes allowed as a home occupation under the Ordinance, which limits the number of students to five at any one time and must be “conducted solely within a dwelling [i.e., indoors] and solely by the person(s) occupying the dwelling as a primary residence.” (Ordinance, §§ 3.3.1 (as of right) & 3.3.2 (by special permit)). It would be reasonable to condition the special permit to ensure that the two separate uses of the Property, i.e. home occupation classes and B&B operation, adhere to the requirements of each use and do not overlap so as to expand the allowed scope of either or create additional vehicle trips to the Property.

Accordingly, and in light of the limits of the Zoning Ordinance discussed above, my clients request that the following conditions be included in any special permit granted to the Applicant to operate a bed-and-breakfast establishment on the Property:

1. The owner must occupy the Property as a primary residence, using at least one of the four available bedrooms;

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<sup>1</sup> The Zoning Act provides that:

Zoning ordinances or by-laws shall provide for specific types of uses which shall only be permitted in specified districts upon the issuance of a special permit. Special permits may be issued only for uses which are in harmony with the general purpose and intent of the ordinance or by-law, and shall be subject to general or specific provisions set forth therein; and such permits may also impose conditions, safeguards and limitations on time or use. G.L. c. 40A, § 9.

2. No more than three (3) bedrooms may be offered for rent to overnight guests;
3. Meals may only be provided to overnight guests, limited to breakfast;
4. The bed-and-breakfast establishment use of the Property by the owner or guests cannot extend into the portion of the Property in the RS zoning district;
5. The bed-and-breakfast establishment use does not include the business of hosting, organizing, or catering indoor or outdoor parties, gatherings, or other events;
6. The bed-and-breakfast establishment use does not include the business of hosting or teaching classes;
7. If the owner of the Property occupying it as a personal residence elects to teach classes or engage in another home occupation allowed under §3.3.1, such classes may not be conducted while there are overnight guests on the Property; and
8. The Special Permit will expire if the Property is sold unless the owner, new owner or proposed owner timely applies for and obtains a special permit to extend or amend the special permit to allow the continued B&B use.

Thank you for your continued careful consideration of this application and the views of neighbors. Please do not hesitate to contact me with any questions.

Respectfully,

/s/ Philip H. Graeter

Philip H. Graeter

cc: Kaitlin M. Wright Esposito, City Clerk (by email only)  
Lori A. Robertson, Administrative Assistant (by email only)  
Timothy Sturgeon and Judith Biewener